not reasonably calculated to lead to the discovery of relevant, admissible evidence. The request does not appear limited to Plaintiff or to the Defendant's policies in place at the time he was employed. Rather, it seeks *all* certificates for *all* employees, regardless of how removed they may be from the circumstances or facts pleaded. While training is certainly relevant, the request is not sufficiently narrowly tailored. Thus, the Court would deny.

RFP1, No. 6: This request seeks signed and dated disciplinary counseling forms related to Plaintiff. Troublingly, however, it also seeks "several examples of others written against fellow . . . employees . . . ." The later request is impermissibly vague and also, again, triggers the privacy concerns related to third-party employees discussed *supra*. Nonetheless, the documents as related to Plaintiff should be produced without objection. Again, while Defendant directs Plaintiff to "Exhibit C", this sort of general directive is insufficiently detailed. The Court would grant, but as to Plaintiff's discipline only.

RFP1, No. 7: This request seeks the "name of the third-party Human Resources investigator" that was hired relevant to the case. As with request number 1, this should be couched as an interrogatory and not a request for documents. It does not seek a document, and therefore the objection that it does not seek a document that exists is appropriate. The Court would deny.

RFP1, No. 8: This seeks any "incident, police, and other reports" that involve Defendant or any of its employees from the last five years preceding the date of Plaintiff's termination of employment. Defendant objected as vague, ambiguous, unduly burdensome and intended to harass. It further asserted privacy concerns related to third-party employees. Certainly, the "all reports" sort of request is improperly overbroad. A more tailored request could be discoverable, but the current request is overbroad. The Court would deny.

RFP1, No. 9: Finally, this request seeks all "documents, footage, photographs, emails and other materials" that was sent as evidence to the Department of Fair Employment and Housing. Defendant agreed to comply. The response appears to be complete and in compliance with Section 2031.210 of the Code of Civil Procedure. Thus, the Court would deny.

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15. *McRae v. Triton Global Services, Inc., et al,* Case No. CIVSB2509611
Plaintiff's Motion to Pierce the Corporate Veil
5/13/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Analysis

As a preliminary matter, rather than seeking to amend the complaint to add an alter-ego theory, Plaintiff brings a so-called “motion to piece the corporate veil.” There appears to be no authority to support that the corporate veil can be pierced by way of a noticed motion or against an unnamed Defendant. (*Hennessey’s Tavern, Inc. v. Am. Air Filter Co.* (1988) 204 Cal.App.3d 1351, 1358.) Further, Plaintiff has failed to present any evidence required for piercing the corporate veil. (*Shaoxing Cnty Huayue Imp & Exp. v. Bhamik* (2011) 191 Cal.App.4th 1189, 1198.)

Generally speaking, a corporation is regarded as a legal entity, separate and distinct from its stockholders, officers and directors, with separate and distinct liabilities and obligations. (*Leek v. Cooper* (2011) 194 Cal. App. 4th 399, 411. “[T]he corporate form will be disregarded only in narrowly defined circumstances and only when the ends of justice so require.” (*Ibid*.) Before a corporation's obligations can be recognized as those of a particular person, the requisite unity of interest and inequitable result must be shown.

“The alter ego doctrine arises when a plaintiff comes into court claiming that an opposing party is using the corporate form unjustly in derogation of the plaintiff’s interest.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 300.) “[T]he corporate form will be disregarded only in narrowly defined circumstances and only when the ends of justice so require.” (*Greenspan v. LADT, LLC* (2010) 191 Cal. App. 4th 486, 511 [internal citation omitted].) In order to establish alter ego liability, a plaintiff must show “(1) such a unity of interest and ownership between the corporation and its equitable owner that no separation actually exists and (2) an inequitable result if the acts in question are treated as those of the corporation alone.” (*Leek v. Cooper, supra,* 194 Cal.App.4th at 417.)

Here, even if the motion were proper (and it appears it is not), Plaintiff has not submitted substantial facts showing entitlement to pierce the corporate veil.

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